

other words, Georgia, Idaho, Ohio, Oklahoma, and Pennsylvania allow partnerships established before a certain date to be recognized as common-law. New Hampshire recognizes common-law marriage exclusively for purposes of probate, and Utah recognizes a marriage as common-law only if it has been validated by a court or administrative order.

STATE	REQUIREMENTS TO FORM A COMMON-LAW MARRIAGE
California	Not recognized.
Colorado	A common-law marriage may be established by proving cohabitation and a reputation of being married.
Florida	Not recognized.
Georgia	Only recognizes common-law marriages formed before January 1, 1997.
Kansas	For a man and woman to form a common-law marriage, they must: (1) have the mental capacity to marry; (2) agree to be married at the present time; and (3) represent to the public that they are married.
Massachusetts	Not recognized.
New Hampshire	Common-law marriages are effective only at death.
New York	Not recognized.
Oklahoma	Only recognizes common-law marriages formed before November 1, 1998.
Pennsylvania	Law was amended to read: "No common-law marriage contracted after January 1, 2005, shall be valid."
Rhode Island	The requirements for a common-law marriage are (1) serious intent to be married and (2) conduct that leads to a reasonable belief in the community that the man and woman are married.
Texas	Texas calls it an "informal marriage" as opposed to common law. According to the Texas Family Code, an informal marriage can be established either by declaration (registering at the county courthouse without having a ceremony) or by meeting a three-pronged test showing evidence of (1) an agreement to be married; (2) cohabitation in Texas; and (3) representation to others that the parties are married.
Utah	Utah recognizes common-law marriage only if it arises out of a contract between two consenting parties who (1) are capable of giving consent; (2) are legally capable of entering a solemnized